NC: 2024:KHC:16908
WP No. 18277 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 25TH DAY OF APRIL, 2024

BEFORE

THE HON'BLE SMT. JUSTICE LALITHA KANNEGANTI

WRIT PETITION NO. 18277 OF 2023 (GM-FC)

BETWEEN:

SMT NIKITA PAI B.,
S/O B. SRINIVAS PAI,
AGED 29 YEARS,
R/AT NO. 4-149,
COLLEGE ROAD, BANTWAL KASBA,
BANTWAL -574 211,
DAKSHINA KANNADA

...PETITIONER

(BY SRI.N.RAVINDRANATH KAMATH, SENIOR COUNSEL A/W
SRI.SIDDAMALLAPPA P.M., ADVOCATE)

AND:

Digitally signed by SUVARNA T
Location: HIGH COURT OF KARNATAKA

SRI RAVITEJA KAMATH B.K
S/O SRI. KESHAVA KAMAH B
AGED ABOUT 33 YEARS,
NO.2/16, KAAMADHENU,
AMAVASEBAIL ROAD,
BELARMAKKI, HALADY (76),
UDUPI - 576 222.

PRESENTLY WORKING AT
MS/. NETSKOPE SOFTWARE
INDIA PRIVATE LIMITED,
1ST FLOOR, SATTVA KNOWLEDGE,
COURT, 20,21, 7TH CROSS,
ROAD, GREEN DOMAIN LAYOUT,
EPIP ZONE,
BANGALORE - 560 048.

...RESPONDENT

(BY SRI.SACHIN B.S., ADVOCATE)

THIS WP IS FILED UNDER ARTICLE 227 OF THE CONSTITUTION OF INDIA PRAYING TO QUASH ORDER AT ANNEXURE-A DATED:31/07/2023 ON IA NO. 5 IN M.C.NO. 10/2023 ON THE FILE OF SR. CIVIL JUDGE AND JMFC, BANTWAL.

THIS PETITION, COMING ON FOR PRELIMINARY HEARING IN 'B' GROUP, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Aggrieved by the order passed in I.A.No.5 in M.C.No.10/2023 dated 31.07.2023 by the Principal Senior Civil Judge and JMFC., Bantwal D.K., the mother is before this Court seeking modification of the said order.

2. For the sake of convenience the parties are referred to as the husband and wife.

3. M.C.No.10/2023 is filed by the wife seeking divorce and M.C.No.6793/2022 is filed by the husband seeking restitution of conjugal rights. As the wife is staying at Bantwal, the husband's petition is transferred to the Family Court at Bantwal. In M.C.No.10/2023, I.A.No.5 is filed by the husband seeking interim custody of the minor child, who was aged 2 ½ years as on the date of filing of the petition. The Court below by order

impugned had permitted the father to have custody between 11.00 a.m. to 5.00 p.m. on every Sunday from the custody of the mother and hand over the custody of the minor daughter Bhuvi Kamath to the custody of the wife at 5.00 p.m. on the same day without fail. The husband is directed to take the custody of the child from the parental house of the wife and it is also made clear that there should be no violence during the visitation period, while giving and taking back the custody of the child.

4. Learned Senior Counsel appearing for the wife submits that the minor girl is aged 2 ½ years and she is still having breast feed. The distance between Bantwal and Mangalore is 30 kms and the minor child of that age cannot be taken every Sunday to Mangalore, as it is not in the interest and welfare of the minor child. Further it is submitted that whenever the husband comes to visit the child, he is creating a scene and embarrassing situation to the mother. It is submitted that this order needs to be modified in the interest of the minor daughter.

5. Learned counsel appearing for the husband submits that though an order is passed by the Court, he has never taken the child to Mangalore and in fact he has been exercising the rights at the wife's place and is staying there for about an hour. It is submitted that he is not creating any scene as submitted by the learned Senior Counsel for the wife and that he is peacefully exercising the visitation rights.

6. Having heard the learned Senior Counsel and the learned counsel for the respondent and perused the entire material on record.

7. The minor child is now aged 3 ½ years and it is difficult for both mother and the child, to travel from Bantwal to Mangalore, which is 30 kms away. Considering the same and in the interest of minor, the order of the Court below is modified as follows:-

a. The husband shall meet the child between 11.00 a.m. to 5.00 p.m. at the place of the wife. He shall not create any kind of inconvenience either to the mother or to the child.

b. It is submitted that the petition filed by both the parties are pending before the Court below. The Court below shall decide the pending cases as expeditiously as possible.

With the above, the petition stands ***disposed*** of.

SD/-
JUDGE

NG
List No.: 1 Sl No.: 18